

IN THE SUPERIOR COURT IN AND FOR
COCHISE COUNTY, ARIZONA

CASE NO.: CV 2015 000240

Virgil L. Light, Chelle Love
Plaintiffs,

vs.

Adam Dodd, Adriana Badal, Allison McLeod,
Allison Hardt, Anastasia Farrar, Robert Pearson,
Charlotte Pagan, David Kondret, Donna Amalong,
The Source Within, LLC, Dwayne Wallace, Emily McCall,
Floyd Lillard, Gretchen Baer, Jeanie Lee Cogswell,
Karen Joy, Keith Dennis, Laurie Pieper, Laura Smith,
Nikki Phobia, Rachel Dennis, Rachel Sky, Richard
Butler Mosher, Richard Green, Samantha Hills,
Serena Sullivan, The Bisbee Observer, LLC,
Josefina Mincher, Rachel O'Malley, Matt Smith, John
Harwood, John Everhardt, Kathryn Magee, Amelie Schuck,

Defendant(s).

PLAINTIFFS MOTION TO AMEND FIRST AMENDED COMPLAINT

Pursuant to Rule 15(a)

COMES NOW Plaintiffs, pursuant to Rule 15 of the Rules of Procedure for the Superior Courts of Arizona, with this Motion for leave to Amend Complaint Plaintiffs First Amended Complaint, state:

1. Following service of the original Complaint in this action, substantial and extreme acts of retaliation continued unabated for months and, in fact, continue still. Despite the fact Defendants were being sued for publishing defamatory statements in writing online, this behavior expanded exponentially; as did the criminal conduct.

2. As the Court can see from the social media disclosures already before it, more than two-thirds of the evidence at issue herein occurred in response to this lawsuit and was collected after the original Complaint was served.

3. Rules of Procedure for the Superior Courts of Arizona encourages the judiciary to freely allow amendments.

4. Plaintiffs submitted the First Amended Complaint in compliance with this Court's order to provide a more definitive statement. Because of Defendant's own affirmative and retaliatory conduct, a Second Amended Complaint is now necessary to conform to the newly discovered evidence.

5. Plaintiffs have attached hereto as Exhibit A a redlined version showing the revisions and, as Exhibit B an original copy of Plaintiffs Second Amended Complaint.

WHEREFORE, Plaintiffs request leave of this Court to Amend the First Amended Complaint to conform to newly discovered evidence.

I HEREBY CERTIFY that a true and correct copy of the foregoing, was mailed to the following on this 27th day of January 2016:

1. John MacKinnon, PO Box 1836, Bisbee, AZ 85603.
2. Thomas Holz, PO Box BZ, Bisbee, AZ 85603
3. Ryan McCarthy, Jones, Skelton & Hochuli, PLC, 2901 N Central Ave, No. 800, Phoenix, AZ 85012
4. Marshall Humphrey, Humphrey & Petersen, P.C., 3861 E. Third Street, Tucson, AZ 85716
5. John Everhart, 115 McNeish Ave., Bisbee AZ 85603
6. Amalie Schuck, 615 Campell St., Bisbee, AZ 85603
7. Mathew Smith, 7115 N. Wiggins Rd., McNeal, AZ 85617
8. Richard Green, PO Box 926, Bisbee, AZ 85603
9. Deanna Rader, Corden & Rees, LLP, 111 W. Monroe St., Ste. 1600, Phoenix, AZ 85003
10. Jestin Johnson, 118 Arizona St, Bisbee, AZ 85603.
11. Brian McIntyre, PO Drawer CA, Bisbee, AZ 85603.
12. AZ Attorney General, Civil Rights Division, 1275 Washington St., Phoenix, AZ 85007
13. US Department of Justice, Attn:SLS, 950 Pennsylvania Ave., NW, Washington, DC 20530.

Chelle K. Love

Virgil L. Light

EXHIBIT A

to
PLAINTIFF'S MOTION TO AMEND FIRST AMENDED COMPLAINT
Served: 01-27-16
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EXHIBIT B

to
PLAINTIFF'S MOTION TO AMEND FIRST AMENDED COMPLAINT
Served: 01-27-16
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